

Panel 3 - AI Act x AI Value Chain and Governance

- Collective values & what to protect
- Laura = Tony Blair Institute
- Jose = Lawyer Barcelona ; MTN Projects
- Gianluca = Lawyer ; 2742
- Chandla = Gate 2 Adl

Who is responsible for output of machine?

- Contract as part of the system!
- Bought or licensed ? $\rightarrow$ Buying / selling
- Read all terms you signed ?!

AI regulation / contact risk:

- Use ^{new} open AI / Claude code to build something
- What is our role in it? Who is responsible
- ↳ Ensure to know are we deployer, provider etc.

-
- Gov. => Not get bound in big, long term contract
 - we are bad in prediction!

• Procurement: Flexible & outcome driven!
Not xyz tech to be used!

• Value based procurement!

- 3-5 y signed now will fall under AI Act

- Barcelona scale-up; dev. recruiting AI, sold it
& candidate got distracted. Who decided?

- Commercial risk to be taken care of in contract
- open source usage,
we fell under AI Act

- Closed model = black box

↳ can I reproduce what happened 6 months ago?
Ask that

- Craft & read contracts:

- Understand (training) of model = greatest risk
in AI Act & GDPR

- Risk as builder

AI Act

- compliance to get certified! Will help to sell
product, be conscious & aware of what they
are! Deployer, provider etc. role is key

- Build & re-sell externally to Gov!

↳ Show compliance → understand procurement regulations!

↳ Are we compliant

- data storage
- data channels

↳ Track record, partner/work w/ companies with a reputation

↳ Ensure compliance in architecture! No reverse engineering! Incl. from day 1!

→ Question buyer should ask:

- How willing are you to commit to it?
- see in real life, stand by it by contract!
- Guarantees in contract!

→ EU product liability directive!

↳ Ensure AI liability is considered!

→ Govern outcome!

- Multiple Agents (Analyst, Builder)
- Product Manager to validate
- who is responsible = person in organization that is using AI!

→ Some not aware of AI Act compliance

- Risk mgmt!
- proof of concept
- show results before long term contract

GDPR + AI Act
compliance !



Procurement + legal
side !

- Proof vs. certify its safe = Ensure „proof“
- confidentiality → cloud act etc.

→ Next to AI Act there are GDPR + other rules to consider

→ Proactively do homework and provide technical & legal proofpoints to validate compliance! security, contract!

→ How system & model work to ensure compliance



- overregulating we might limit exeting & incorporating data e.g. from US

↳ Block access to frontie labs

↳ Do application well

Build open sources to run wherever we need them!

- warranties
- penalties for breach
- exit clauses
- Fight for accountability
(provide, integrate or use)

} Validate
in our
contracts !